

See Instructions (EXP101) for help in filling out this form.

State of Minnesota

District Court

County of: Example County

Court File Number: 62-CR-20-1234

Judicial District: _____

Case Type: Criminal

State of Minnesota

Plaintiff

VS

Jordan Avery Reyes

Defendant

Notice of Hearing and Petition for Expungement (EXP102)

Minn. Stat. § 609A.03 or Inherent Authority

Notice to Law Enforcement / Government Agency / Prosecutor: Any objection to an expungement in this case shall be filed with the court as soon as possible, and within 60 days.

Hearing Information

The hearing in this case is scheduled on:

Date: _____, at _____ ☐ a.m. / ☐ p.m.

The hearing will be:

☐ **Remote using Zoom** (See the "Remote Hearing Information" Help Topic online at www.mncourts.gov/Remote-Hearings.aspx.)

Zoom meeting ID: _____

Passcode: _____

OR

☐ **In Person**

Courthouse address: _____

Courtroom number: _____

Petition for Expungement

1. List your full name:

First: Jordan

Middle: Avery

Last: Reyes

2. List any other legal names or aliases you have been known as: _____

3. List your date of birth: 1991-04-17

4. List your current address:

Street Address: 118 Maple Street

City, State, Zip: Springfield, MN 55101

5. List all the other addresses you have lived at since the date of the offense for which you are seeking an expungement: (give the street address, city, and state)

☐ Check this box if you have only lived at your current address (listed in #4) since the date of the offense.

6. Reasons for this Request.

Why are you asking for an expungement?

Include the following information:

- Whether you are asking for an expungement for employment, housing, or licensure reasons;
- The statutory or other legal authority under which you are seeking an expungement; and
- Why an expungement should be granted (give specific details).

I am asking for an expungement because:

Add another sheet if needed.

7. **Criminal Record.** Minnesota law requires you to give the full record of all your criminal convictions for misdemeanors, gross misdemeanors, or felonies; and criminal charges (including all criminal charges that have been continued for dismissal, stayed for adjudication, or have been the subject of pretrial diversion).

Give the following details about your criminal record (include information from Minnesota and any other state, federal court, and foreign countries):

- All charges, convictions, stays of adjudication or impositions of sentence, whether the conviction happened before or after the offense for which you are seeking expungement; and
- All pending charges or actions for misdemeanors, gross misdemeanors, or felonies.

Case #	County-State	Type of Charge	Date of Offense	Conviction Yes/No	Date of Conviction (if Yes)

Add another sheet if needed.

8. **Past Requests.** Have you ever asked for an expungement, pardon, or sealing of a criminal record before (whether for this offense or for any other offense, and whether it was granted or not)? ☐ Yes ☐ No

If yes, list each other request for an expungement, pardon, or sealing of a criminal record you have made: _____

Add another sheet if needed.

9. Qualification for Expungement.

Why do you qualify for an expungement?

- ☐ A criminal case against you for a possession of a controlled substance under Minn. Stat. §§ 152.024, 152.025, or 152.027 has been dismissed and the proceedings have been discharged under Minn. Stat. § 152.18. [Use *Order Concerning Sealing/Expunging of Record - Minn. Stat. § 609A.02, subd. 1 or 2* (court form EXP106).]
- ☒ You were certified or referenced for prosecution as an adult for a crime you committed when you were a juvenile. [Use *Order Concerning Sealing/Expunging of Record - Minn. Stat. § 609A.02, subd. 1 or 2* (court form EXP106).]
- ☐ A criminal matter was resolved your favor. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105).]
- ☐ You successfully completed the terms of a diversion program or stay of adjudication, and you have not been charged with a new crime for at least one year since completion of the diversion program or stay of adjudication. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105).]
- ☐ You were convicted of a petty misdemeanor or misdemeanor, or the sentence imposed was within the limits provided by law for a misdemeanor, and you have not been convicted of a new crime for at least two years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105).]
- ☐ You were convicted of a gross misdemeanor, or the sentence imposed was within the limits provided by law for a gross misdemeanor, and you have not been convicted of a new crime for at least three years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].
- ☐ You were convicted of a gross misdemeanor that is deemed to be for a misdemeanor pursuant to Minn. Stat. § 609.13, subd. 2(2), and you have not been convicted of a new crime for at least three years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].
- ☐ You were convicted of a felony violation of Minn. Stat. § 152.025, and you have not been convicted of a new crime for at least four years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].

- ☐ You were convicted of a felony that is deemed to be for a gross misdemeanor or misdemeanor pursuant to Minn. Stat. § 609.13, subd. 1(2), and have not been convicted of a new crime for at least four years since discharge of the sentence for the crime if the conviction was for an offense listed in Minn. Stat. § 609A.02, subd. 3(b); **or** five years since discharge of the sentence for the crime if the conviction was for any other offense. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].
- ☐ You were convicted of a felony violation of an offense listed in Minn. Stat. § 609A.02, subd. 3(b), and have not been convicted of a new crime for at least four years since discharge of the sentence for the crime. [Use *Order Concerning Sealing/Expunging of Records - Minn. Stat. § 609A.02, subd. 3* (court form EXP105)].
- ☐ You were convicted of an offense that does not qualify for expungement under Minn. Stat. § 609A.02, subd. 3, but you believe you have rehabilitated yourself. You believe that the benefit to you outweighs the disadvantage to the public and the burden on the court. [Use *Findings of Fact, Conclusions of Law and Order to Seal/Expunge Judicial Records Only* (court form EXP107).]

10. Offense Details. What is the offense you want to expunge?

Case #: 62-CR-20-1234

Jurisdiction/City where the offense occurred: Example County

Type of offense: Fifth-degree possession of a controlled substance

Date of offense: 2019-08-04

11. Victims. Were there any identifiable victims in this case? ☐ Yes ☐ No

If Yes, list the names of the victims: _____

12. Protection, Restraining, or No-Contact Orders. Is there now, or has there ever been, an Order for Protection, Restraining Order, or other No-Contact Order prohibiting you from contacting the victims?

- ☐ Yes. [Include copies of any orders with this *Petition*.]
☐ No.
☐ N/A (not applicable because there were no identifiable victims in this case).

13. Personal Rehabilitation. Describe what steps you have taken since the time of the offense toward personal rehabilitation, including treatment, work, or other personal history that demonstrates rehabilitation.

I have taken the following steps toward personal rehabilitation:

Add another sheet if needed.

14. Do you want to ask the court to seal any private or confidential data submitted by the responding agencies or other jurisdictions? [Minn. Stat. § 609A.03, subd. 3(d)]

☐ Yes ☐ No

15. Do you want to ask that, if an expungement is ordered, each agency and jurisdiction that receives the order must send a letter to you at the address provided confirming receipt of the expungement order and that the record has been expunged? [Minn. Stat. § 609A.03, subd. 8(b)]: ☐ Yes ☐ No

16. **Mitigating or Aggravating Factors.** Explain any mitigating or aggravating factors relating to the underlying crime, including your level of participation, the context and circumstances of the underlying crime, and what risk, if any, you pose to individuals or society.

Add another sheet if needed.

I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116

Date: _____

Signature: _____

County and state where signed: _____

Name: Jordan Avery Reyes

Address: 118 Maple Street

City/State/Zip: Springfield, MN 55101

Phone: 555-0142

Email: jordan.reyes@example.com

State of Minnesota

County Example County

District Court

Judicial District: _____

Court File Number: 62-CR-20-1234Case Type: CriminalState of Minnesota

vs

Proof of Service (EXP104)Jordan Avery Reyes

Defendant

I, _____ (name of person who mailed the documents), state that on _____ (date), I served the attached documents, *Notice of Hearing and Petition for Expungement* and proposed *Order*, by mailing true and correct copies to the parties checked below at the addresses listed by putting envelopes with sufficient postage in the U.S. Mail in the City of _____.

1 ☒	MN Bureau of Criminal Apprehension CJIS-CCH-Court Orders / Petitions 1430 Maryland Avenue East St. Paul, MN 55106 (Required)	5 ☒	_____ County Dept. of Corrections (Probation) _____ _____ (Required)	9 ☐	MN Dept. of Human Services Office of Inspector General, Legal Counsel Office P.O. Box 64953 St. Paul, MN 55164-0953 (check box & use if related to your case)
2 ☒	Office of the MN Attorney General Suite 1400 445 Minnesota Street St. Paul, MN 55101 (Required)	6 ☒	_____ Sheriff's Office Attn: Records _____ _____ (Required)	10 ☐	MN Dept. of Health Attn: Reconsideration Unit / Expungements P.O. Box 64970 St. Paul, MN 55164-0970 (check box & use if related to your case)
3 ☒	MN Dept. of Corrections Attn: Records 1450 Energy Park Drive, Ste. 200 St. Paul, MN 55108-5219 (Required)	7 ☐	_____ Police Dept. Attn: Records _____ _____ (check box & use if related to your case)	11 ☐	MN Dept. of Natural Resources 500 Lafayette Road Box # 47 St. Paul, MN 55155-4040 (check box & use if related to your case)
4 ☒	_____ County Attorney's Office Attn: Criminal Records _____ _____ (Required)	8 ☐	_____ City Attorney's Office (Prosecutor) Attn: Criminal Division _____ _____ (check box & use if related to your case)	12 ☐	MN Driver and Vehicle Services Attn: Fines & Investigations 445 Minnesota Street, Suite 190 St. Paul, MN 55101-5190 (check box & use if related to your case)

13 MN State Patrol Attn: Expungements 445 Minnesota Street, Suite 190 St. Paul, MN 55101-5190 ☐ <i>(check box & use if related to your case)</i>	14 ☐ _____ _____ _____ <i>(check box & use if related to your case)</i>	15 ☐ _____ _____ _____ <i>(check box & use if related to your case)</i>
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I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116.

Date

County and state where signed:

Signature (person who mailed the papers)

Printed Name: _____

Address: _____

City/State/Zip: _____

Telephone: _____

State of Minnesota

District Court

County of: Example County

Court File Number: 62-CR-20-1234

Judicial District: _____

Case Type: Criminal

State of Minnesota

Plaintiff

VS

Jordan Avery Reyes

Defendant

Date of Birth: 1991-04-17

Order Concerning Sealing/Expunging of Records (EXP106)

Minn. Stat. § 609A.02, subd. 1 or 2

On _____ (date), the Court considered the *Petition for Expungement* in the above matter.

Appearances were:

☐ Petitioner (Petitioner is the same person as the Defendant in the underlying criminal matter)

☐ Prosecuting Authority: _____

☐ Other: _____

☐ Waived

The Court finds:

1. On _____ (date) in the District Court of _____ County, the Petitioner:

☐ Entered a plea or was found guilty of the crime of _____ and was sentenced pursuant to Minn. § 152.18.

OR

☐ Entered a plea or was found guilty of _____ following certification or reference to district court for prosecution pursuant to Minn. Stat. § 260B.125.

2. Petitioner was not convicted of an offense that requires registration under Minn. Stat. § 243.166.

3. The Petitioner was discharged by the commissioner of corrections, or was placed on probation and an order discharging the Petitioner from probation has been filed and/or the proceedings dismissed.
4. Proper service ☐ has / ☐ has not been given including notice to any victim if required.
5. There ☐ is / ☐ is not clear and convincing evidence that sealing the record would yield a benefit to Petitioner commensurate with the disadvantages to the public and public safety of: (1) sealing the record; and (2) burdening the court and public authorities to issue, enforce, and monitor an expungement order. {Minn. Stat. § 609A.03, subd. 5(a)}: _____

6. There ☐ is / ☐ is not a nexus between the criminal record to be expunged and the Petitioner's status as a crime victim.

IT IS ORDERED:

- ☐ 1. Petitioner's request for sealing/expunging of records is denied.
- ☐ 2. Petitioner's request for sealing/expunging of records is granted. All official records, including all records relating to the arrest, indictment or complaint, trial and dismissal, shall be sealed by the agencies indicated in paragraph 4 below and the existence not disclosed without court order, except as authorized by law.
- ☐ 3. That for this offense only, all fingerprints and thumbprints, photographs and other identification data except for DNA samples, and all copies of duplicates thereof, shall be sealed by the agencies indicated in paragraph 4 below.
- ☐ 4. This order applies to the following agencies:

☐ District Court ☐ _____ County Sheriff ☐ _____ Police Dept. ☐ MN State Patrol ☐ Bureau of Criminal Apprehension ☐ Department of Corrections ☐ Department of Public Safety, Driver and Vehicle Services Division	☐ MN Attorney General ☐ _____ County Attorney ☐ _____ City Attorney ☐ Probation/Court Services Dept: _____ ☐ MN Department of Human Services ☐ MN Department of Natural Resources ☐ MN Department of Health ☐ _____
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- ☐ 5. This order, which ☐ seals the record of proceedings under Minn. Stat. § 152.18 or ☐ finds a nexus between the criminal record and the Petitioner's status as a crime victim, restores the Petitioner to the status occupied before the arrest or charge. The Petitioner will not be guilty of perjury for failure to acknowledge the arrest or proceeding in response to any inquiry made for any purpose.
- ☐ 6. The court administrator shall send a copy of this expungement order to each agency and jurisdiction whose records are affected, and send a copy of this order to the Petitioner along with notice identifying each agency that was sent a copy of the order.
7. The Petitioner shall continue to be prohibited from shipping, transporting, possessing, or receiving a firearm for the remainder of the Petitioner's lifetime if the conviction was for a crime of violence and an order was not issued under Minn. Stat. § 609.165, subd. 1d.
- ☐ 8. Other: _____

NOTE: This order is stayed for 60 days, during any appeal, and until any remaining restitution or other financial obligation on the case is paid in full. Records will not be sealed until after this time.

Dated: _____
Judge of District Court

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See Instructions (FEE101) for help in filling out this form.

State of Minnesota

District Court

County of: Example County

Court File Number: 62-CR-20-1234

Judicial District: _____

Case Type: _____

Plaintiff/Petitioner

VS/AND

Jordan Avery Reyes

Defendant/Respondent

Affidavit to Request Fee Waiver (FEE102)

Minn. Stat. § 563.01

1. I am a party in this action. I am not filing on behalf of a business. In good faith, I ask for a court order waiving court fees and costs. I cannot support my family and myself and also pay or give security for costs.
2. I believe that I have good reasons for making this request.

Choose one:

- ☒ I am including my pleadings with this *Affidavit* (or I have already filed my pleadings but have not yet paid the filing fee).

→ Examples of pleadings include the petition, complaint, answer, motion, etc.

OR

- ☐ I only want to have copy fees waived. I do not have any pleadings to file at this time.

3. ☐ I have a lawyer through a civil legal services program or volunteer attorney program that gives legal services to people with low incomes.

My lawyer's name is: _____

My lawyer works or volunteers for: _____

**If you checked #3, skip to the end of this form and sign the last page.
You do not need to fill out the rest of the form.**

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4. ☐ I do not receive public assistance. (If checked, skip to #5)

OR

- ☐ I receive public assistance. (Choose “a” or “b”)

- a. ☐ I receive public assistance under one or more of the following programs:

- ☐ SSI (Supplemental Security Income)
- ☐ MSA (Minnesota Supplemental Security Aid) or Emergency MSA
- ☐ GA (General Assistance) or Emergency GA
- ☐ SNAP (Supplemental Nutrition Assistance Program, also known as food stamps)
- ☐ MFIP (Minnesota Family Investment Program), MFIP Diversional Work Program (DWP), or Work Participation Cash Benefit
- ☐ MinnesotaCare or Medical Assistance
- ☐ Receipt of part D extra help or payment by the government of Medicare part B premiums
- ☐ Emergency Assistance or county crisis funds;
- ☐ Energy or Fuel Assistance

OR

- b. ☐ I receive public assistance through a different program based on my income: (list the program) _____

I will include proof that I receive public assistance listed in 4a and 4b.

→ Examples of proof include a copy of EBT card, statement of benefits, benefits award letter, cancelled check from an agency, etc.

If you checked a box in #4a, skip to the end of this form and sign the last page. You do not need to fill out the rest of the form.

If you only checked #4b, continue filling out the form.

5. My household size is _____.

→ Include yourself, your spouse or significant other, your children who are under age 18 (or over 18 but still in high school), and other dependents in your home. Dependents are people who rely on you for most of their financial support, and can include parents, children over the age of 18, or extended family members.

My household, other than myself, includes:

Name	Age	Relationship to you

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Name	Age	Relationship to you

If you need more space, add another sheet of paper with your name and court file number, if you know it.

6. I receive income from the following sources (check all that apply):

☐ Job/wages ☐ Unemployment ☐ Social Security

☐ Child Support ☐ Spousal Support ☐ Trust Income

☐ Other (for example: disability, pension, rental income): _____

→ Include income from all the sources you checked above. To calculate monthly income you get from a job:

- Multiply the number of hours worked per week by your hourly pay to get the weekly amount.
- Then multiply that by 4.33 to get the monthly amount.
- In summary: hours per week x hourly pay x 4.33 = monthly income before taxes and deductions).

→ If your monthly income changes a lot from month to month, then you should answer the question below based on your *average* monthly income for the last 6 months. To calculate your average income:

- Add your total monthly income from the last 6 months.
- Then divide that number by 6
- In summary: last 6 months of income added together ÷ 6 = average monthly income.

My total **monthly** income (before taxes and deductions) is \$_____

OR

☐ My **average** monthly income (before taxes and deductions) is \$_____

7. I am ☐ **not married** (skip to #8).

OR

I am (check all that apply): ☐ married ☐ separated ☐ getting a divorce

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My spouse's total **monthly** income (before taxes and deductions) is \$_____.

The source of that income is _____.

OR

I do not know my spouse's income because: _____

8. ☐ I do not have any other family members or dependents living with me that have income.

OR

- ☐ I have other family members and/or dependents living with me that have income. Their net (take home) **monthly** income is:

Name	Monthly Income	Source of Income
	\$	
	\$	
	\$	

If you need more space, add another sheet of paper with your name and court file number, if you know it.

9. My household's total **yearly** income (before taxes and deductions) is \$_____.

- ☐ This is **less** than 125% of the Federal Poverty Line for my household size of _____.

OR

- ☐ This is **more** than 125% of the Federal Poverty Line for my household size of _____.



Find the Federal Poverty Guidelines in the [Fee Waiver Instructions](#) (FEE101), which you can find by scanning the QR Code.

I have attached proof of my household income.

→ Examples of proof include most recent tax returns, pay stubs of all household members with income, etc.

If your income is less than 125% of the Federal Poverty Line, skip to the end of this form and sign the last page.

You do not need to fill out the rest of the form.

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10. I pay the following **monthly expenses**:

→ Include amounts you pay for yourself, your spouse or significant other, your minor children, and other dependents in your home; if you do not have the expense, list \$0.

Rent or mortgage:	\$ _____	Child support:	\$ _____
Utilities:	\$ _____	Childcare:	\$ _____
Food:	\$ _____	Medical insurance:	\$ _____
Car payments:	\$ _____	Cell phone:	\$ _____
Car insurance:	\$ _____	Other (explain):	\$ _____
Spousal support:	\$ _____		_____

11. I am \$ _____ in debt.

→ Do not include any car loan, real estate loan, or mortgage.

12. I have the following money available:

→ List \$0 if you don't have these things.

Cash: \$ _____	Accounts: \$ _____ (checking, savings, and/or credit union)
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13. I own the following property (list the equity value of the item, which is what you could sell the item for minus the amount you still owe on the item, if anything):

Vehicle 1	
Year and make: _____	\$ _____
Vehicle 2	
Year and make: _____	\$ _____
House I live in now	\$ _____
Other real estate	\$ _____
Other personal property (jewelry, stocks, bonds, etc.; list separately):	
_____	\$ _____
_____	\$ _____
_____	\$ _____

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14. Other reasons why I cannot afford to pay the court fees (explain unusual medical expenses, emergencies, credit card payments, student loans, reasons that the listed money is not available to you, or other circumstances to help the judicial officer understand your situation):

I declare under penalty of perjury that everything I have stated in this document is true and correct.
Minn. Stat. § 358.116

Date: _____ Signature: _____

County and state where signed: _____

Name: _____

Address: _____

City, State, Zip: _____

Phone: _____

Email: _____

What is next?

- ➔ Put this form together with your pleadings (petition, complaint, motion, answer, etc.) and proof of public assistance or proof of your financial need.
- ➔ File these documents with Court Administration by mail, in person or electronic filing (eFiling).
- ➔ A judicial officer will review your request. They will grant or deny your request.
- ➔ If the judicial officer grants a *full* fee waiver, you will not have to pay any filing fees, service, and publication fees, or copy fees for the case in which your fee waiver was granted. If they grant you a *partial* waiver, you will have to pay part of the fees and costs.

Need help?

- ➔ Scan the QR code above for instructions on how to fill out this form.
- ➔ Contact the Statewide Self-Help Center at (651) 435-6535.